

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

AJAX COLLADO,

Respondent

) Case Number: FCS-09-344959

) Hearing Date: July 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Ajax Collado (Father) and Jennyfer Murcia Madrid (Mother) have one minor child, Kiara (DOB 3/24/2009, age 17). On 3/25/2026, Father filed a request for sole legal and physical custody and a Tier II interview of the child. Mother opposes the request and seeks sole legal and physical custody with weekend parenting time for Father.
- 2) On 6/24/2026, the Court issued a tentative ruling ordering the parties to contact Family Court Services immediately (on or before 6/26/2026) to schedule an in-person Tier II interview of Kiara and continuing the matter to 7/28/2026 at 9AM in Department 404 to give sufficient time for the interview to occur. Neither party objected to the tentative ruling or appeared at the hearing, and the tentative ruling was adopted as the Court's order.
- 3) Family Court Services conducted Kiara's Tier II interview on 7/20/2026. Kiara expressed clearly that she is doing well in Father's home and wishes to stay there and visit Mother for up to 4 hours a week, with the option of ending the visits early if she is not comfortable. She states she was very close to Mother but has grown apart and feels "pushed aside" since Mother entered a new

1 relationship. She hopes to spend one-on-one time with Mother and would like her to stop saying
2 negative things about Father and his family.

3 **B. Findings and Order**

- 4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 child is the United States.
- 8 2) The Court finds it is in Kiara's best interest to have the parties share legal custody and for Father
9 to have temporary physical custody, with parenting time for Mother for up to 4 hours per week,
10 as arranged for directly by Mother and Kiara. If necessary, Mother and Father shall coordinate to
11 ensure the visits happen. If Kiara wishes to see Mother for longer periods of time, this shall be
12 permitted, subject to Mother and Kiara's availability. Mother shall ensure that she is able to spend
13 one-on-one time with Kiara during these visits.
- 14 3) Neither party shall speak negatively about the other party or the other party's family members to,
15 or in front of, Kiara.
- 16 4) The Court will prepare the Findings and Order After Hearing.
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